

Plaintiff filed opposition to the demurrer on April 17, 2026. The opposition papers include a proposed amended complaint. However, the proposed amended complaint is substantially a restatement of the operative complaint and so does not demonstrate a reasonable possibility that amendment would cure the lack of a cognizable action against CUEVA in the operative complaint. Where the proposed amended complaint adds new material it adds only legal argument and allegations of general inequality in the prison system that do not implicate CUEVA specifically.

Conclusion. CUEVA's demurrer is sustained without leave to amend.

JAVON CHRISTINA ROSS vs. RONALD DEAN SCRIVNER; ET AL.
Case No. CU24-06538

Defendant's Motion for Sanctions for Spoliation of Evidence

TENTATIVE RULING

Defendant RONALD DEAN SCRIVNER moves for issue, evidentiary, and monetary sanctions against Plaintiff JAVON CHRISTINA ROSS. Defendant contends that Plaintiff intentionally underwent sacroiliac joint surgery shortly after Defendant served her with a demand for an independent medical examination and thereby deprived him of evidence of the condition of her sacroiliac joint following the motor vehicle collision underlying Plaintiff's complaint.

Code of Civil Procedure section 2023.030 permits a court to impose various sanctions on a party that misuses the discovery process. Spoliation of evidence is the destruction or significant alteration of evidence or the failure to preserve evidence for another's use in future litigation. (*Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1223.) Spoliation is an abuse of the discovery process open to a wide range of sanctions, including monetary, evidentiary, issue, and terminating sanctions. (*Ibid.*) Egregious spoliation can warrant terminating sanctions even absent prior disobedience of court orders. (*Ibid.*) However, as these sanctions are meant to remedy misconduct rather than punish offenders, sanctions imposed must not place the requesting party in a better place than he would be had he obtained the spoiled evidence and should be proportionate to the offending party's misconduct. (*Ibid.*) A party moving for sanctions based on spoliation of evidence must make a prima facie showing that evidence was spoiled and the spoliation has a substantial probability of damaging the movant's ability to prove his claim or defense. (*Id.* at p. 1227.) The party accused of spoliation must then disprove prejudice to the movant. (*Ibid.*)

Defendant took Plaintiff's deposition on August 27, 2025 and at that time learned that Plaintiff had been recommended sacroiliac joint surgery. (Declaration of Caitlyn M. Harris in Support of Motion at ¶ 4, Exhibit A.) Plaintiff stated at the deposition that she had not scheduled a date for the surgery but had an appointment on August 28, 2025 at which scheduling would be arranged. (*Ibid.* [deposition transcript at 81:17-21, 108:7-

21].) Defendant served a demand for an independent medical examination of Plaintiff on September 4, 2025, setting the examination for October 17, 2025. (*Id.* at ¶ 7, Exhibit D.) Plaintiff showed up to the examination on October 17, 2025 having recently undergone sacroiliac joint surgery. (*Id.* at ¶ 8.)

The Court finds that Plaintiff has misused the discovery process withing the meaning of CCP Section 2023.010. Section 2030.010 is not limited to the situations listed in the statute itself. “Misuses of the discovery process include, but are not limited to, the following [,,].” *CCP Section 2023.010*.

On August 28, 2025, Defendant unambiguously demanded that Plaintiff promptly notify Defendant of any surgery date. (Declaration of Caitlyn M. Harris in Support of Motion at ¶ 5, Exhibit B.) In Plaintiff’s response email dated September 2, 2025, Plaintiff did not respond one way or the other as to this particular demand for notification. (Declaration of Caitlyn M. Harris in Support of Motion at ¶ 6, Exhibit C.) The Court finds that Defendant’s demand was reasonable and would have allowed Defendant to seek further court orders, if needed, upon learning of a surgery date scheduled to occur before the IME date. The Court finds that Defendant has been prejudiced in that they were prevented from completing an IME exam that would allow them to fully investigate the extent of Plaintiff’s injury, pre-surgery.

The Court finds that Plaintiff did not act with substantial justification. Similarly, the Court finds that there are no circumstances which make the imposition of sanctions unjust.

Defendant’s motion for monetary sanctions is granted against Plaintiff / Plaintiff’s Counsel in the amount of \$2460.00, due and payable to Defendant / Defense Counsel within 30 days of the date of service of this order. The Court denies Defendant’s request for evidentiary or issue sanctions.

Plaintiff’s request for CACI instruction 204 is denied without prejudice as it is premature. The Court will entertain Plaintiff’s request for this instruction at the time of trial and based upon the evidence that has been admitted at trial.

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Defendant’s Motion for Compel Compliance with Deposition Subpoena for Production of Business Records

TENTATIVE RULING

Defendant RONALD DEAN SCRIVNER moves to compel The Choyce Law Firm to comply with his deposition subpoena for production of business records served September 16, 2025. The subpoena seeks all non-privileged records pertaining to Plaintiff JAVON CHRISTINA ROSS, including correspondence with doctors, experts,